

Judgment Sheet

**IN THE LAHORE HIGH COURT
RAWALPINDI BENCH, RAWALPINDI**

JUDICIAL DEPARTMENT

Case No:W.P. No.256/2019.

Aatif Mehmood etc. Vs. Govt. of Punjab etc.

JUDGMENT

Date of Hearing	16.04.2019
Petitioners by	Mr. Sher Ahmad Malik, Advocate Mr. Muhammad Atif Farzauq Raja, Advocate
Respondent by	Mirza Asif Abbas, AAG along with Raja Muhammad Akram Abbasi, L.O. o/o CEO, DEA, Rawalpindi, Muhammad Naseem Akhtar, DEO (M-Ehsan Elahi), Chakwal and Masud Ahmed Awan, AEO, o/o CEO DEA Chakwal.

ABID AZIZ SHEIKH, J. This judgment will also decide **Writ Petitions No.49/2019, 1201/2019, 2218/2018 and 343/2019** as common questions of law and facts are involved in all these constitutional petitions.

2. Through these constitutional petitions, the petitioners have challenged the orders passed by the respondents whereby service contracts of the petitioners were not extended, consequently they were directed to stop the work with immediate effect.

3. Brief facts common in all these constitutional petitions are that under recruitment policy 2012 for Educators, the petitioners were appointed as Educators on

contract basis for period of 5 years. The terms of the contract provided that the tenure may be extended for further period of 5 years on the basis of good performance. The contract also provided that the selected candidates who do not possess the professional qualification i.e. B.Ed. will have to acquire the requisite qualification within 03 years otherwise, their service contracts will not be extended. The petitioners who did not possess the professional qualification at the time of selection could not acquire the requisite professional qualification within prescribed period of 3 years, however, they requested for the extension of their contracts. The competent authority on 03.09.2018 gave concession and directed that Educators who were recruited under the recruitment policy 2012 and could not complete their professional qualification within 3 years but have completed it within 5 years of their contract and are still working, will be granted extension in contract period and thereafter considered for regularization after observing codal formalities. The letter further observed that contracts of other educators will not be extended after expiry of their contract period of 5 years. The petitioners could not complete their professional qualification of B.Ed. within contract period of 5 years and consequently their contracts were not extended. Petitioners being aggrieved have filed these constitutional petitions.

4. Learned counsel for the petitioners submits that petitioners are working for more than 6-1/2 years on contract against permanent posts, therefore, they have acquired legitimate expectation for extension of their contract and thereafter regularization of their service. Further submits that the petitioners were allowed to continue work after 5 years and their pay was also released, hence respondents are estopped under the principle of “Promissory Estoppel” from declining the extension of service contract. Adds that petitioners have been discriminated as number of other contract employees have been granted extension by the respondents. Submits that petitioners have also been condemned unheard as no notice was given to them before not extending the contracts. They submit that it is a case of hardship as some of the petitioners have already completed their professional qualification but just few months after 5 years, whereas the others are in process of completing their professional qualification. They finally submit that petitioners’ right of life under article 9 of the Constitution of Islamic Republic of Pakistan, 1973 (Constitution) will be affected if their contracts are not further extended. Reliance is placed on Board of Intermediate and Secondary Education, Faisalabad through Chairman and others vs. Tanveer Sajid and others (2018 SCMR 1405), Dr. Shamsher Ali Khan and 27 others vs. Government of Khyber Pakhtunkhwa through Secretary Finance and 2 others (2019 MLD 87) and High

Court Bar Association and others vs. Government of Balochistan through Secretary, Home and Tribal Affairs Department and 6 others (PLJ 2013 Quetta 123).

5. Learned Assistant Advocate General on behalf of respondents on the other hand submits that the terms of service contracts of petitioners were specific, according to which the petitioners were required to complete their professional qualification within period of 3 years for extension of contract. Submits that to give further concession, the said period was extended up to contract period of 5 years but the petitioners could not secure the professional qualification within stipulated time period, hence they have no vested right for the extension of the contract. Further submits that there is no question of discrimination as not even a single contract employee who has not completed his professional qualification before period of 5 years, has been given extension or regularized in service. Submits that no commitment made by the respondent department has been violated, hence principles of “Promissory Estoppel” or “Legitimate Expectations” are not applicable.

6. Arguments heard. Record perused. It is admitted position between the parties that petitioners were appointed as Educators under the recruitment policy 2012 for period of 5 years. The clause 4 of the letter of agreement which is common in all service contracts, relates to period of

extension of contract. The said clause for convenience is reproduced hereunder:-

*“4. **Period of Contract:** Your appointment will be purely on contract basis for the period initially five years and the tenure may be extended for further five years on the basis of good performance. Those selected candidates who do not possess professional qualification will have to acquire the requisite qualification within three years otherwise their contract will not be extended.”*

Plain reading of clause 4 of the letter of agreement shows that the appointments were on contract basis for initial period of 5 years which could be extended for another period of 5 years on basis of good performance. Further the selected candidates who did not have professional qualification were required to have requisite qualification within period of 3 years otherwise their contract will not be extended.

7. The requirement for acquiring professional qualification within period of 3 years was a condition precedent for the extension of the contract which was also specifically mentioned in each letter of contract of the petitioners. Therefore, it cannot be said that the requirement of having professional qualification, for extension of contract was a surprise or a new condition attached to the terms of the service contracts. The petitioners from day one of their appointments were aware regarding the requirement of professional qualification to be acquired within 3 years, if at all they wanted extension in their service contracts, hence it cannot be said that petitioners have been condemned unheard.

8. Notwithstanding the above specific clause in letters of agreement, the respondents through letter dated 03.09.2018, have extended the period for acquiring professional qualification from 3 years to contract period of 5 years. Though the respondent authorities were not obliged under the terms of the letter of agreements to extend the period from 3 years to 5 years, however, it was apparently done to accommodate those selectees who made serious efforts to acquire professional qualification within 3 years but could not complete the qualification in three years for any reason beyond their control, however it does not mean that the condition was not mandatory or same was dispensed with altogether for extension of contract. The argument that condition was not mandatory has also no basis. There are penal consequences attached to condition that if professional qualification is not acquired in 3 years, the contract cannot be extended. It is settled law that where penal consequences entails, the condition is mandatory. Reliance is placed on *In the matter of Human Rights Case No.4668 of 2006 (PLD 2010 SC 759)*, *Zia ur Rehman vs. Syed Ahmad Hussain (2014 SCMR 1015)*.

9. In the context of the above factual and legal position, it is admitted on all hands that petitioners could not secure their professional qualification of B.Ed. within original requisite period of 3 years or even in extended period of 5 years of their contract. Therefore, no vested right accrued in

favour of the petitioners for the extension of their contracts. According to the specific terms of the contract, if the professional qualification is not completed within time specified, the contract cannot be extended, hence no violation of these terms of the contracts have been highlighted on the part of the respondents. The petitioners also could not refer to any rule or policy under which the respondents are bound to extend the period of contract notwithstanding the fact that conditions for the extension of contract are not fulfilled.

10. The legal question whether contract employees have any vested right for extension of contract or regularization of their services remained subject matter of discussion in number of cases decided by august Supreme Court as well as by this Court. The consistent view on the subject is that a contract employee has no vested right to claim for extension or regularization of his service as a matter of right and it is the prerogative of the competent authority either to dispense with services of such employee or continue with the same by extending the contract. In this context, the august Supreme Court in Government of Baluchistan, Department of Health through Secretary Civil Secretariat, the Quetta vs. Dr. Zahida Kakar and 43 others (2005 SCMR 642) held that contract service being purely on temporary basis on contract, such appointments terminates on the expiry of contract period or in extended period at choice of the employer or appointing authority and does not create any vested right. The same view

was also followed by august Supreme Court in Dr. Mubashar Ahmad vs. PTCL through Chairman Islamabad and another (2007 PLC (CS) 737) and Muzaffar Khan and others vs. Government of Pakistan (2013 SCMR 304). The honourable Supreme Court in Ameer Solangi and others vs. WAPDA and others (2016 SCMR 46) held that extension in contract during completion process of project does not give any right to claim regularization. Furthermore similarly in case of adhoc/temporary employees, the honourable Supreme Court in Naila Khalid vs. Pakistan through Secretary Defence and others (PLD 2003 SC 420), Nazar Hussain and others vs. Deputy District Education Officer etc. (2003 SCMR 1269) and Muhammad Wasay Tareen vs. Chief Justice of Balochistan through Registrar of High Court (2005 PLC (CS) 1085) held that adhoc appointment does not confer on the petitioners any right or interest to continue service under the law and the status of such adhoc employees could not be changed unless regularized by adopting the legal procedure and method prescribed in law or regularization policy.

11. The Division Bench of this Court also in Mubashir Majeed vs. Province of Punjab and three others (2017 PLC (CS) 940) and Dr. Abid Ali vs. Chief Secretary Govt. of Punjab and three others (2017 PLC (CS) 488) held that the contract employees could not claim extension of a contract as a matter of right rather it is the prerogative of the competent

authority either to dispense with the service of such employee or continue with the same by extending the contract.

12. The argument of the petitioners that their case is covered under the principle of “Legitimate Expectation” and “Promissory Estoppel” is also misconceived. No doubt in contractual sphere, as in all other State actions, there is no unfettered discretion with public authorities who can only use their discretion in public good and are bound to act justly, fairly and adopt a procedure which is in fair play. Further due observance on this obligation on part of good administration also raises a reasonable or legitimate expectation in every citizen to be treated fairly in his interaction with the State and its instrumentalities. However, in this matter, no arbitrariness or unfair exercise of discretion has been pointed out on the part of public functionaries to invoke the principle of “Legitimate Expectation”. Further to invoke principle of “Promissory Estoppel”, the petitioners must have vested right accrued under the service contract or through any subsequent lawful commitment made by the respondent department. In the present cases, the extension was subject to good performance and completion of professional qualification within 3 years, which was further extended to 5 years, therefore, unless petitioners fulfilled the above preconditions within specified time, neither any vested right created in their favour nor any commitment made by the respondent department has been violated, hence there is no question of

any “Legitimate Expectation” in favour of the petitioners or violation of “Promissory Estoppel” against the respondents.

13. So far as the question of discrimination is concerned, no doubt number of contracts have been extended by the respondents, however, the petitioners could not show a single extension of contract where professional qualification was not acquired before contract period of 5 years. Learned Law Officer on instructions also specifically stated that there is no such extension of contract made to ensure transparent and equal policy across the board without any discrimination. The case law relied upon by learned counsel for the petitioners is on different footing and not applicable to the facts and circumstances of these cases.

14. In view of above discussion, **these constitutional petitions** being meritless are **dismissed**.

(ABID AZIZ SHEIKH)
JUDGE

Approved for reporting.

(ABID AZIZ SHEIKH)
JUDGE

Riaz Ahmad